SECTION III

Bid Data Sheet (BDS)

BID DATA SHEET (BDS)

For

Implementation of SAP S4 HANA with RISE Based ERP System.

The following bid specific data for the above-mentioned package shall amend and/or supplement the provisions in the Instructions to Bidders (ITB). Wherever there is a conflict, the provisions herein shall prevail over those in the ITB.

Before creating / submitting the bids, Bidders are required to go through the Tender documents. links provided at following JPL(JV OF NTPC) e-tendering website: www.etenders.gov.in

S. No.	ITB Clause Ref., if any.	Data
1.0	11.1	Type of Bidding: Single Stage Three Envelope Type of Contract: Service Contract.
2.0	ITB 1.1	Name and Address of Employer: Jhabua power Ltd, DGM (Contracts & Materials) JPL(NTPC) Limited, Site Office, Village Barela, Post – Attaria , Tehsil – Ghansore Madhya Pradesh-480997 Email: sameer.kher1@jhabuapower.co.in ; gauravsaraswat@ntpc.co.in Name of the Project (where works to be executed): Jhabua Power Ltd (JPL)
3.0	ITB 6.1	Address for Correspondence: Jhabua power Ltd, DGM (Contracts & Materials) JPL(NTPC) Limited, Head Office, Village Barela, Post – Attaria , Tehsil – Ghansore Madhya Pradesh-480997 Email: sameer.kher1@jhabuapower.co.in ; gauravsaraswat@ntpc.co.in JPL Websites for reference: https://etenders.gov.in
4.0	ITB 7.0	Whether Pre-Bid Conference will be held – Yes
5.0	ITB 11.1.1(A)(b)	Whether Consortium / Joint Venture Bids are Permitted: No Whether Associate/ Collaborator is permitted: No Whether MSME/MSE Benefits are permitted - No
6.0	ITB 11.1.1(B)(c)	Refer NIT
7.0	ITB 11.1.1(A) & 11.1.1(B)	11.1.1(A) – Applicable , refer ITB / NIT 11.1.1(B) - Applicable
8.0	ITB 12.3	Add following at the ITB Clause 12.3 as Under: 12.3 Bidder is also required to submit a Declaration of GST Scheme as per Attachment-14 titled as “Declaration Regarding GST” (to be submitted along with Techno-Commercial Bid).

S. No.	ITB Clause Ref., if any.	Data
		Due Input Tax credits under GST as per the relevant Govt. Policy, wherever applicable (not applicable for RCM), shall be taken into account by the Bidder while quoting his price The GST mentioned by the bidder shall be as applicable in the Employer's country as on seven (7) days prior to the deadline for submission of Techno-Commercial Bid GST on Transportation shall be paid or reimbursed on submission of (GSTIN Invoice) along with Consignment Note issued by Contractor.
9.0	ITB 12.11	ITB Clause 12.11 shall be read as under: "Contract Price shall remain firm and binding throughout the contract.
10.0	ITB 15.0	As per SCC Clause No. 2
11.0	ITB 21.0	Bids are to be submitted online. Bid Security to be submitted in form of Bank Transfer in the account specified under. In case Bid Security is submitted in form of BG , same shall be uploaded on the portal and physical in original at the address mentioned for correspondence. Jhabua power Ltd, DGM (Contracts & Materials) JPL(NTPC) Limited, Site Office, Village Barela, Post – Attaria , Tehsil – Ghansore Madhya Pradesh-480997 Email: sameer.kher1@jhabuapower.co.in Bank Account Details : (i) Account Name: Jhabua Power Limited (ii) Bank Name: AXIS BANK LIMITED (iii) Account No. : 128010200029698 (iv) Branch: JABALPUR (v) Bank Address: Axis Bank Ltd, Ground Floor, Panchratan Building , Model Road , Jabalpur, MP - 482 002 (vi) IFSC Code: UTIB0000128 (vii) MICR Code: 482211001 Last Date & Time for Bid Submission: Please refer portal. Date & Time for Bid Opening: Please refer portal. Date & Time for Bid Opening: Please refer portal.
12.0	ITB Clause 23	As per tender
13.0	ITB clause no. 14.7	As per Clause 21 of SCC

S. No.	ITB Clause Ref., if any.	Data
14.0	In conjunction to ITB Clause No. 14.1 to 14.9	Amount of Bid Security/ EMD: Refer SCC The Earnest Money Deposit (EMD) for this tender shall, at Bidders option, be in the form of:- 1) A Bank Guarantee from any of the banks specified in Annexure-I to Bid Data Sheet of bidding documents. OR 2) Cash deposit (EFT) in the Bank account as mentioned above. NOTE: EMD Exemption – Not Applicable. a) The format of the Bank Guarantee shall be in accordance with the form of bank guarantee towards bid security included in the Bidding Documents. Bid Security shall remain valid for a period of forty-five (45) days beyond the original Bid validity period and beyond any extension of bid validity subsequently requested under relevant clause of ITB. b) Wherever Bids under Joint Venture route are permitted as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture. c) Any bid not accompanied by an acceptable bid security in a separate sealed envelope shall be rejected by the employer as being non-responsive and shall not be opened. In case, the bid security is submitted as EFT, bidder to submit the proof of e-payment of bid security on www.etenders.gov.in portal. Further Stage-II (Price Bid) (in case of Two Stage bidding) not accompanied by requisite bid security extension (in case Bid Security is submitted in the form of BG) in a separate sealed envelope shall be rejected by the Employer as being nonresponsive and shall not be opened. d) BG against Bid Security issued by a Bank outside India needs to bear stamp duty of appropriate value applicable to the place in JPL(JV OF NTPC) where BG is to be submitted. The BG may be got adjudicated by the employer from Collector of Stamps, within 3 months of arrival of BG in India. Expenses incurred in this regard shall be borne by JPL(JV OF NTPC). e) Subject to clause 14.8 below, the Bid Security of the Bidder whose Techno-Commercial Bid has not been found acceptable, shall be returned along with letter communicating rejection of Techno-Commercial Bid. The Bid Security of the bidders who are unsuccessful after opening of Price Bids shall be returned expeditiously. f) The Bid Security of the successful Bidder to whom the contract is awarded will be returned when the said Bidder has signed the Contract Agreement and has furnished the required Performance Securities (CPBG) pursuant to relevant clauses of ITB. g) The Bid Security may be forfeited i) If the Bidder withdraws or varies its Bid during the period of Bid validity; ii) If the Bidder does not accept the correction of its Bid Price pursuant to ITB Sub-Clause for Arithmetical Correction. iii) If the Bidder refuses to withdraw, without any cost to the Employer, any deviation, variation, additional condition or any other mention anywhere in the bid (Price bid in case of Two Stage Bid), contrary to the provisions of bidding documents. iv) In the case of a successful Bidder, if the Bidder fails within the specified time limit to furnish the required Contract Performance Guarantee/Security Deposit in accordance with relevant clause of ITB. v) If the bidder/his representatives commit any fraud while competing for this contract pursuant to Fraud Prevention Policy of JPL(JV OF NTPC). (vi) In case the Bidder/Contractor is disqualified from bidding process in terms of Section 3 and 4 of Integrity Pact (IF APPLICABLE). (vii) Any suppression of material fact or false declaration regarding

S. No.	ITB Clause Ref., if any.	Data
		Insolvency, bankruptcy and Liquidation proceeding against Bidder, Associate, Collaborator or Technology Provider." h) CONFIRMATION OF BGS THROUGH STRUCTURED FINANCIAL MESSAGING SYSTEM (SFMS)/SWIFT While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below: (i) Account Name: Jhabua Power Limited (ii) Bank Name: AXIS BANK LIMITED (iii) Account No. : 128010200029698 (iv) Branch: JABALPUR (v) Bank Address: Axis Bank Ltd, Ground Floor, Panchratan Building , Model Road , Jabalpur, MP - 482 002 (vi) IFSC Code: UTIB0000128 (vii) MICR Code: 482211001 BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI. In case of Bidders opting for Bank Guarantee as Bid Security but unable to submit the Original Bank Guarantee in physical form at the tender opening location, before the deadline for submission of bids, following shall also be considered acceptable, subject to para below: I) (i) The issuing bank shall intimate through their own official e-mail id to concerned C&M department with a copy to Bidder regarding issuance / extension of Bank Guarantee (BG) along with following documents, before the deadline of submission of bids: - a) The scanned copy of the BG. b) SFMS message acknowledgement copy sent to JPL / Employer's banker stating the date of sending. c) An undertaking from the issuing Bank strictly as per format enclosed at the end of this document as Annexure-III. SFMS / SWIFT message must be sent to the JPL/Employer's bank, details of which are mentioned in Bidding documents. (ii) Bidders shall also be required to upload the scanned copy of the BG on www.etenders.gov.in portal. (iii) The bidder shall be required to submit all the documents in the manner as specified at para above, to reach JPL(JV OF NTPC)/Employer before the deadline for submission of bids, failing which its bid shall be rejected as being non-responsive and not opened. In such a case, Bidder shall also be required to submit the Original BG in physical form to reach JPL(JV OF NTPC) at the address mentioned in Bidding Documents, not later than 10 days from the date of submission of Techno-Commercial bids or before the Price Bid opening, whichever is earlier, failing which its bid shall be rejected and not considered for further evaluation. (II) If aforesaid documents (as mentioned in para (i) and (ii)) are not received from issuing bank to concerned C&M department, than the scanned copy of the BG shall be uploaded by Seller in the online bid and hard copy of the same will have to reach JPL(JV OF NTPC) at the address mentioned in Bidding Documents within 5 working days of bid opening, failing which the bid shall be treated as incomplete & shall lead to rejection of the bid without making any

S. No.	ITB Clause Ref., if any.	Data
		reference to the seller.
15.0	ITB Clause 36.0	As per NIT Clause 11. “Restrictions on procurement from a Bidder of a country which shares a land border with India”1 Any Bidder (including its Collaborator /Associate /DJU Partner /JVpartner /Consortium Member /Assignee, wherever applicable) from a country which shares a land border with India will be eligible to bid in thistender only if bidder is registered with the Competent Authority asmentioned in Special Conditions of Contract (SCC). Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, will be eligible to bid only if the bidder is registered with the same competent authority as mentioned in Special Conditions of Contract (SCC). (Definition/Requirement of ToT shall be as specified in DOE OM Ref. No. F.7/10/2021-PPD(1) dated 23.02.2023) Such registration should be valid for the entire period of bid validity or any extension thereof. However, in case the validity period of registration is less than bid validity period, the Bidder shall be required to submit the extension of the validity period of registration before the opening of price bids, failing which the bid shall be rejected. Further the successful bidder shall not be allowed to sub-contract works to any “Sub-contractor” from a country which shares a land border with India unless such Sub-contractor is registered with the competent Authority as mentioned in SCC. However, the said requirement of registration will not apply to bidders/sub-contractors from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Bidders may apprise themselves of the updated lists of such countries available in the website of the Ministry of External Affairs. 2 “Bidder” (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of bidders stated herein before, including any agency, branch or office controlled by such person, participating in a procurement process. 3 “Sub-contractor” (including the term ‘Sub-vendor’/Sub-supplier’ in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of Sub-contractors stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

S. No.	ITB Clause Ref., if any.	Data
		4 “Bidders from a country which shares a land border with India” / “Subcontractor from a country which shares a land border with India” / “Entity from a country which shares a land border with India” mentioned in para 1 above means; a) An entity incorporated, established or registered in such a country; or b) A subsidiary of an entity incorporated, established or registered in such a country; or c) An entity substantially controlled through entities incorporated, established or registered in such a country; or d) An entity whose beneficial owner is situated in such a country; or e) An Indian (or other) agent of such an entity; or f) A natural person who is a citizen of such a country; or g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above. 5 The beneficial owner for the purpose of clause “4” above will be as under; a) In case of company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means. Explanation “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company; ii. “Control” shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholdings or management rights or shareholders agreements or voting agreements; b) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership; c) In case of an unincorporated associations or body of individuals, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals; d) Where no natural person is identified under (a) or (b) or (c) above, the beneficial owner is the relevant natural person who holds the position of senior managing officials; e) In case of a trust, the identifications of beneficial owner(s) shall include identification of the author of trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership. 6 An Agent for the purpose of clause “4” is a person employed to do any act

S. No.	ITB Clause Ref., if any.	Data
		for another, or to represent another in dealings with third person. [Note: i. A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent. ii. However, a bidder who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.]
16.0	Annexure to BDS pertaining to List of Banks	Annexure to BDS pertaining to List of Banks Acceptable for Submission of Bank Guarantee for Bid Security
17.0	ITB clause 1.2	ITB clause 1.2 under “Introduction” shall be read as under: Throughout these Bidding Documents, the term “Bid” and “Tender” and their derivatives (Bidder/Tenderer, Bidding/Tendering, Bidding Document/Tender Document, etc.); Bill of Quantity / Schedule of Quantity / Schedule of Quantities/ Bill of Quantities; Employer / JPL(JV OF NTPC); Security Deposit / Performance Security/ Performance Guarantee; Engineer-in-Charge / Engineer, appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other.
18.0	Insert New Clause 38 to ITB	37. Corrupt or Fraudulent Practices 37.1 Employer requires that Bidders, Contractors and Suppliers observe the highest standard of ethics during the procurement/tendering and execution of the contracts. In pursuance of this policy, Employer : (a) defines, for the purposes of this provision, the terms set forth below as follows: (i) "Corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement/tendering process or in contract execution; and (ii) "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement/tendering process or the execution of a contract to the detriment of the Employer, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial noncompetitive levels and to deprive the Employer of the benefits of free and open competition; (b) will reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question; (c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing a contract of the Employer.
19.0	Add New ITB Clause No. 39	Version of “Policy for Debarment from Business Dealings” ITB Clause No. 39.1 The version of Policy for Debarment from Business Dealings presently followed by JPL(JV OF NTPC) is Rev-4- ATTACHED AS ANNEXURE TO SCC- SECTION -V.
20.0	FORMAT OF	The format of the Bank Guarantee shall be in accordance with the form of Bank

S. No.	ITB Clause Ref., if any.	Data
	BG	Guarantee towards Bid Security/EMD/Performance security/*Security for the Deed of Joint Undertaking (if applicable)/*Advance payment (if applicable) included in the Employer's Bidding Documents only. Any bid not accompanied by an acceptable bid security in a separate sealed envelope shall be rejected by the Employer as being non-responsive
21.0	Add New ITB Clause NO. 40	Anti-Bribery and Anti-Corruption (ABAC) Policy: The Bidder and its employees along with its Associate/ Collaborator/ SubContractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with business of Employer shall strictly adhere to AntiBribery and Anti-Corruption (ABAC) Policy of Employer displayed on tender website NTPC Portal Bidders shall certify their compliance on "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer by giving the acceptance in Attachment 15 and Attachment 16. "Do you certify full compliance to all provisions of Bidding Document?" Acceptance of above shall be considered as bidder's confirmation that they and their employees along with their associate / collaborator/ subcontractors / sub vendors / consultants / service providers shall strictly abide by "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer as displayed on tender website at NTPC portal under section 'policy docs' and undertake that they represent and confirm that they are aware of, understand, and will comply with all applicable laws and regulations relating to anticorruption and anti-bribery and the ABAC Policy of Employer.
22.0	Replace ITB Clause 3.0 CONFLICT OF INTEREST as following:	3.1 A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Employer's interests. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process, if: a) they directly or indirectly control, or are controlled by or are under common control of another entity; or b) they have the same legal representative/agent for purposes of their bids; or c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or e) Bidder participates in more than one bid in this bidding process. For the purposes of this clause the term 'control' shall have the following meaning: "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders' agreements or voting agreements or in any other manner.

S. No.	ITB Clause Ref., if any.	Data
		Note: If two or more CPSEs/State PSEs participate in a tender, they will not be deemed to fall under the 'Conflict of Interest' provisions solely because they are under common control of Government of India/State Government. 3.2 Bidders shall certify their compliance to ITB Clause "Conflict of Interest" by filling the format attached for the same as Annexure-17: "Do you certify full compliance to all provisions of Bidding Document?" Acceptance of above shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding "Conflict of Interest" and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected and bid security shall be forfeited. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practices as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.
23.0	INTEGRITY PACT (Replace ITB Clause No. 35)	Bidders are required to unconditionally accept the "Integrity Pact (IP)" (executed on plain paper) as per Attachment-12 to the Bidding Documents which has been pre-signed by the Employer, and Bidder must accept the same in Attachment 15. Where the joint ventures(s)/Consortium are permitted to participate in the bid as per the qualifying requirements, the signing/acceptance of Integrity Pact (IP) by all Joint Venture(s) Partner(s) / Consortium members is mandatory. The Integrity Pact (IP) is to be accepted in Attachment 15 as per provision of ITB 17.1. Bidder's failure to comply with the aforesaid requirement regarding acceptance of "Integrity Pact (IP)" may lead to outright rejection of bid and in such case the bids shall be returned unopened to the bidder. *It may also be noted that subsequent to Employer's evaluation of Bids, resulting into award of Contract to a particular Bidder, the Integrity Pact so submitted shall form an integral part of the Contract.* *33.1 Independent External Monitors (IEMs):* *In respect of this package, the Independent External Monitors (IEMs) would be monitoring the implementation and effectiveness of the Integrity Pact Program as per the SOP issued by CVC from time to time and available in its website https://cvc.gov.in/.* *The Independent External Monitor(s) (IEMs) as mentioned at JPL(JV OF NTPC) tender website (https://etenders.gov.co.in) under Integrity Pact tab have been appointed by JPL(JV OF NTPC), in terms of Integrity Pact (IP) which forms part of the JPL(JV OF NTPC) Tenders/Contracts.* *This panel is authorized to examine /consider all references made to it under this tender. The bidder(s), in case of any representation/grievance/complaint pertaining to this package may raise the issue directly with the IEMs at following*

S. No.	ITB Clause Ref., if any.	Data
		Address: ***"The IEMs' Secretariat,*** ***Contracts Services Administrative Building , Jhabua power Ltd , Post Attaria , Dist Seoni***
24.0	New Clause 39 to ITB	"Declaration regarding insolvency, bankruptcy and Liquidation" The Bidder shall not be eligible for bidding, if the Bidder has become the subject of proceedings under any bankruptcy or insolvency laws either by way of voluntary insolvency initiation or upon a judicial order being passed to that effect, thereby admitting the Bidder to Corporate Insolvency Resolution Process (CIRP) or Liquidation proceedings under Insolvency and Bankruptcy Code, 2016 or has a receiver appointed over its properties under any law for the time being in force in accordance with the guidelines of the Reserve Bank of India issued under the Banking Regulation Act, 1949. The aforesaid ineligibility provision owing to the pendency of CIRP, Liquidation, appointed receiver shall also be applicable to any Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary company from whom the Bidder has taken, or intends to take, technical and/or financial support for qualification in the bid. In case of a Foreign Company who is participating either as a Bidder or an Associate, Collaborator, Technology Provider which is undergoing insolvency, bankruptcy or liquidation proceedings, as per the extant laws of the respective jurisdiction, shall also not be eligible for bidding or associating or collaborating or providing Technology or partnership with the Bidder. If, at the time of bid submission, any Bidder or its Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary Company, from whom the Bidder has taken, or intends to take technical and/or financial support for qualification in the bid, was not undergoing CIRP, Liquidation, Bankruptcy or similar proceedings but subsequently during the period of evaluation of bids, including but not limited to technical, commercial and financial evaluation, or any time before the work is awarded, any such application is admitted by the Adjudicating Authority under the IBC, 2016 or any similar proceedings have started by any Judicial / Quasi-Judicial Body, the Bidder shall, with immediate effect, be considered as ineligible and his bid shall be rejected forthwith.

S. No.	ITB Clause Ref., if any.	Data
		An undertaking as per enclosed Proforma (Attachment-3L of Techno-commercial bid form, Section-VII) to the effect that the Bidder or its Associate, Collaborator, Technology Provider or Bidder's Parent/Holding/Subsidiary Company, from whom the Bidder has taken, or intends to take, technical and/or financial support for qualification in the bid, is not undergoing any Insolvency, Liquidation or Bankruptcy proceedings, shall be submitted by the Bidder along with its Techno- Commercial bid on the letter head of the Bidder duly signed by the authorized representative of the Bidder. Further, any Foreign Company which is acting as an Associate, Collaborator or Technology Provider, shall also submit an undertaking along with the Techno-Commercial bid of the Bidder that they are not undergoing insolvency, bankruptcy or liquidation as per the relevant laws of their respective jurisdiction. Further, the Bidder, from the submission of bid until the award of work, shall immediately inform the Employer of any proceedings / admission / orders passed for admitting the Bidder or any of its Associate, Collaborator or Technology Provider or Bidder's Parent/Holding/Subsidiary Company (from whom the Bidder has taken or intends to take technical and/ or financial support for qualification of bid) to CIRP by the Adjudicating Authority under IBC, 2016 or any similar proceedings under other applicable laws (in cases where IBC, 2016 is not applicable). Any suppression of such material facts or false declaration shall immediately render the Bidder liable for rejection of his bid, forfeiture of bid security/EMD and banning of business dealing as per terms and conditions of the Policy & Procedure for Debarment from Business Dealings. In case of non-submission of the Attachment / Declaration with authorized seal and signature, the bid shall not be entertained.

LIST OF BANKS FROM WHICH BANK GUARANTEES
FOR BID SECURITY CAN BE ACCEPTED

UPDATED SCHEDULED COMMERCIAL BANK LIST

A STATE BANK OF INDIA

B NATIONALISED BANKS

1Bank of Baroda
2Bank of India
3Bank of Maharashtra
4Canara Bank
5Central Bank of India
6Indian Overseas Bank
7Indian Bank
8Punjab National Bank
9Union Bank of India
10Punjab & Sind Bank
11UCO Bank

C SCHEDULED PRIVATE BANKS (INDIAN BANKS)

1Axis Bank Ltd
2Bandhan Bank Limited
3CSB Bank
4City Union Bank
5DCB Bank Ltd
6Dhanlaxmi Bank Ltd
7Federal Bank Ltd
8HDFC Bank Ltd
9ICICI Bank Ltd
10IndusInd Bank Ltd
11IDFC FIRST Bank Limited
12Jammu & Kashmir Bank Ltd
13Karnataka Bank Ltd
14Karur Vysya Bank Ltd
15Kotak Mahindra Bank
16Lakshmi Vilas Bank Ltd
17Nainital Bank Ltd
18RBL Bank Limited
19South Indian Bank Ltd
20Tamilnad Mercantile Bank Ltd
21Yes Bank Ltd
22IDBI Bank Ltd.

SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

1 AB Bank Ltd
2Abu Dhabi Commercial Bank PJSC
3American Express Banking Corporation
4Australia & Newzealand Banking Group Limited
5Barclays Bank Plc
6Bank of America
7Bank of Bahrain & Kuwait B.S.C.
8Bank of Ceylon
9Bank of China Limited
10Bank of Nova Scotia
11BNP Paribas
12Citi Bank NA
13Cooperatieve Rabobank UA
14Crédit Agricole Corporate and Investment Bank
15Credit Suisse AG
16CTBC Bank Co Ltd
17 DBS Bank India Ltd
18Deutsche Bank A.G.
19Doha Bank Q.P.S.C
20Emirates NBD Bank (PJSC)
21First Abu Dhabi Bank PJSC
22FirstRand Bank Ltd
23HSBC Ltd
24Industrial & Commercial Bank of China Ltd
25Industrial Bank of Korea
26JP Morgan Chase Bank, National Association
27JSC VTB Bank
28KEB Hana Bank
29Kookmin Bank
30Krung Thai Bank Public Company Ltd
31Mashreq Bank PSC
32Mizuho Bank Ltd
33MUFG Bank, Ltd
34NatWest Markets Plc
35PT Bank Maybank Indonesia TBK
36Qatar National Bank (Q.P.S.C.)
37Sberbank
38SBM Bank (India) Ltd
39Shinhan Bank
40 Societe Generale
41Sonali Bank Ltd
42Standard Chartered Bank
43Sumitomo Mitsui Banking Corporation
44United Overseas Bank Ltd
45Westpac Banking Corporation
46Woori Bank

*Note - Any Addition/ Deletion/ Modification in Bank list shall be as per changes in Second Schedule List by RBI from time to time

1. All the Bank Guarantees issued by the Banks in India shall only be accepted.

2. e-BGs are presently not acceptable for this tender for Jhabua Power Ltd

Sub: Preference to Make In India and Eligibility for Participation/ granting of Purchase Preference to Class-I local suppliers- regarding

It is the policy of the Government of India to encourage 'Make in India' and promote manufacturing and production of Goods and Services in India with a view to enhancing income and employment. In this regard, the following guidelines, concerning the procedure to be adopted for granting Eligibility for Participation/purchase preference to local suppliers, are hereby issued:

1.0 Definitions:

a) 'Local content' means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the goods, services or works procured (excluding net domestic indirect taxes) minus the value of imported content in the goods, services or works (including all customs duties) as a proportion of the total value, in percent.

b) 'Class-I local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed.

'Class-II local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for 'Class-II local supplier' but less than that prescribed for 'Class-I local supplier'.

'Non-Local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content less than that prescribed for 'Class-II local supplier'.

c) 'L1' means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjudged in the evaluation process as per the tender or other procurement solicitation.

d) 'Margin of purchase preference' means the maximum extent to which the evaluated bid price of a ‘Class-I local supplier’ may be above the L1 for the purpose of purchase preference.

e) Fraud Prevention Policy – shall mean the policy related to prevention of fraud displayed on JPL(JV OF NTPC) tender website www.etenders.gov.in

f) Policy & Procedure for Debarment from Business Dealings – shall mean the policy related to Debarment from Business Dealings forming part of Bidding Document.

1.1 Minimum Local Content

1.1.1 The local content requirement to categorize a Bidder/Supplier as 'Class-I local supplier' is minimum 60%. For 'Class-II local supplier', the 'local content' requirement is minimum 20%.

1.1.2 Ancillary services such as transportation, insurance, installation, commissioning, training, and after sales service support such as AMC/CMC etc. shall not be considered as local value addition. Bidders offering imported products will fall under the category of Non-local suppliers. Such bidders can’t claim themselves as Class-I local suppliers / Class-II local suppliers by claiming the services such as transportation, insurance, installation, commissioning, training, and after sales service support such as AMC/CMC etc. as local value addition.

2.0 Eligibility for Participation/Purchase Preference:

A. APPLICABLE FOR TENDERS WHERE ONLY CLASS-I LOCAL SUPPLIERS ARE ELIGIBLE TO BID, AS PER PARA 2.1 OF CIRCULAR:

2.1 Eligibility for Participation

a) *For tenders having lump sum evaluation:

Only Class-I local suppliers are eligible to Bid. Bids received (if any) from Class-II Local Supplier / Non Local Supplier shall be out rightly rejected.

3.0 Deleted
4.0 Deleted

5.0 Verification of Local Content:

5.1 The 'Class-I local supplier'/ ~~'Class-II local supplier'~~ shall be required to provide, in the Bid Form/relevant Attachment of Techno- Commercial Bid, self-certification / declaration that the Item offered meets the local content requirement for 'Class-I local supplier'/ ~~'Class-II local supplier'~~ and shall give details of the location(s) at which the local value addition is made.

5.2 In case the total bid price of the supplier / bidder is in excess of INR 10 crore, the 'Class-I local supplier'/ ~~'Class-II local supplier'~~ shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content during execution prior to submission of last bill for payment.

In case aforesaid Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration.

5.3 Deleted

5.4 False declarations will be dealt in line with the Fraud Prevention Policy and Policy & Procedure for Debarment from Business Dealings of JPL(JV OF NTPC).

5.5 In case of false declaration / violation of the provision of PPP-MII Order, if a bidder has been debarred / banned by JPL(JV OF NTPC), then the fact and duration of debarment should be promptly brought to the notice of the Member-Convenor of the Standing Committee (as per para 16 of PPP-MII Order) and the Department of Expenditure through Ministry of Power, GOI.

5.6 A supplier who has been debarred / banned by any other procuring entity for violation of 'Public Procurement (Preference to Make In India), Order 2017' (PPP-MII Order) dated 15.06.2017 and its subsequent revisions / amendments issued by Department of Industrial Policy and Promotion (DIPP) shall not be eligible for evaluation/preference, as applicable, under the aforesaid procedures for duration of the debarment. The 'Class-I local supplier'/ ~~'Class-II local supplier'~~ shall be required to furnish a confirmation in this regard in the Bid Form/relevant Attachment of Techno-Commercial Bid.

6.0 Local Sourcing

6.1 The Bidder/its Sub-vendors must be Class-I local supplier for Item(s) mentioned at clause no. 41 of GTR in Technical Specifications, as applicable, in case such item(s) are Self Manufactured/Bought-out.

6.2 The Bidder / Contractor are requested to encourage and promote domestic manufacturing and production of goods and services by sourcing goods and services applicable under the contract / package from domestic suppliers / service providers. In this regard, Bidder shall also follow guidelines / advisory issued by Government of India from time to time, to the extent applicable to them, regarding promotion of local sourcing of goods including Bought out Items and services.

Annexure–III of BDS

Format of Undertaking

(To be sent by Issuing Bank through official email-ID to dealing executive of JPL(JV OF NTPC) before the submission deadline of Bid)

From: xxxbank@xx.in

To: sameer.kher1@jhabuapower.co.in

We have issued BG No. …………………… dated ………………… for an amount of Rs. ………………… on behalf of …………………[Name of Bidder] towards Bid Security / EMD for Tender No. ………… in favour of ………………… [Name of Employer].

Please find enclosed the soft copy of the Bank Guarantee and SFMS acknowledgement. This SFMS is sent on ………………. (date).

Any demand / claim made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder till the validity period mentioned in the Bank Guarantee.

However, in absence of the physical copy of aforementioned BG with the Employer, we undertake that Employer's demand / claim will be binding and conclusive on us without the physical copy of aforementioned BG till fourteen (14) days from the due date of submission of Techno-Commercial bids.

We undertake not to cancel the aforementioned BG No. ………….. without written consent / instruction from JPL(JV OF NTPC).

(Name of Bank Official)

Authority No. ………….